SOFTWARE AS A SERVICE (SaaS) SUBSCRIPTION AGREEMENT

This Software as a Service Agreement ("Agreement") is made effective as of November 5, 2026, by and between CloudScale Platform Inc., a Delaware corporation with offices at 200 Cloud Parkway, Austin, TX ("Provider"), and Enterprise Retailers Global Inc., a New York corporation located at 750 Lexington Ave, New York, NY ("Customer").

WHEREAS, Provider operates a proprietary cloud-based inventory intelligence platform;

WHEREAS, Customer desires to subscribe to and access the platform for its internal business retail operations pursuant to the terms and conditions set forth herein.

1. Subscription and Access Grant

Subject to the terms of this Agreement and timely payment of subscription fees, Provider grants Customer a non-exclusive, non-transferable right to access and use the hosted services solely for Customer's internal business operations during the term.

2. Service Levels and Technical Support

Provider shall make commercially reasonable efforts to ensure 99.5% service uptime during each calendar month, excluding scheduled maintenance windows announced at least 48 hours in advance.

3. Complete Disclaimer of All Warranties

The hosted services and platform are provided strictly 'as is' without warranty of any kind. Provider disclaims all warranties, express, statutory, or implied, including without limitation warranties of merchantability, title, and fitness for a particular purpose.

4. Unilateral Liability & Indemnity

Customer shall indemnify, defend, and hold harmless Provider and its officers, directors, and affiliates against any and all claims, liabilities, damages, and costs arising out of this Agreement, and Customer agrees to uncapped liability and unlimited liability without limit.

5. Fees and Payment Terms

Customer shall pay the annual subscription fees in advance within thirty (30) days from the invoice date. Late payments shall accrue interest at 1.5% per month.

6. Term and Termination

The initial term of this subscription shall be twelve (12) months and may be renewed by mutual written agreement of both parties.

FOR PARTY A / DISCLOSING:

By: _____
Name: Authorized Signatory
Title: Chief Legal Officer / Executive
Date: _____

FOR PARTY B / RECEIVING:

By: _____
Name: Authorized Signatory
Title: Managing Director / Counsel
Date: _____